



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 17, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202105666 (Incident Date: September 21, 2021) regarding Police Officer Christopher Cohen, Tax No. 967818 (DADS No. 2022-27421)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that CCRB's identification of Police Officer Cohen was insufficient to identify Police Officer Cohen as the officer who interacted with the complainant.

In this matter, the complainant described the officer as a "white male in uniform and that the male was taller than 5'3" and had a medium build." There was no further description and no further details provided other than that the officer was positioned by or near the front entrance. Police Officer Cohen had no independent recollection of the incident when he was interviewed. The CCRB stated that it is "likely" that this was Police Officer Cohen since he was assigned to a security post at the front of the stationhouse that day and is a white male. Further, CCRB deduced that another officer assigned to stationhouse security was darker skinned and thus was eliminated as a possible subject.

The identification of Police Officer Cohen by the CCRB as the officer who interacted with the complainant hinges solely on the generalized description of Police Officer Cohen. Further, the CCRB failed to take into account that there were numerous officers working that could have potentially interacted with the complainant.

These factors alone do not create a proper identification, especially considering that the CCRB failed to take into account that there were numerous officers working that could have potentially interacted with the complainant.

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Therefore, based on the foregoing, Police Officer Cohen will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 207-28 (Processing Civilian Complaints).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish at the end.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office